

		K&A did not live up to its promise. [<i>Id.</i>, ¶¶ 74, 77.] Plaintiff further alleges that Daher, Andry and K&A breached the oral contract by failing to perform as promises. [SAC, ¶¶ 73, 74, 76, 77, 71.] This is sufficient to state a cause of action against Andry. But there are no allegations as to Life is Amazing. Elsewhere in the complaint Plaintiffs refer to Life is Amazing as “Andry’s LLC,” but there is no express allegation of ownership and no alter ego allegations regarding Andry and Life is Amazing. [SAC, ¶ 38. Compare ¶¶ 17, 26-32.] The MJOP to the first cause of action is denied as to Doran Andry but otherwise granted. <i>Second Cause of Action for Breach of Implied Contract -- against All Defendants, and Does 1-10 inclusive</i> The terms of an express contract are stated in words. The existence and terms of an implied contract are manifested by conduct. Even when an express contract exists, evidence derived from experience and practice can now trigger the incorporation of additional, implied terms. Although implied contractual terms ordinarily stand on equal footing with express terms, they may never be read to vary express terms. See <i>Retired Employees Assn. of OC, Inc. v. County of Orange</i> (2011) 52 Cal.4th 1171, 1178-1179. In order for an implied contract to be enforceable, the terms of the contract must be sufficiently certain so as to provide a basis for determining to what obligations the parties have agreed.
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Weddington Productions., Inc. v. Flick (1998) 60 Cal.App.4th 793, 811.

There is no conduct alleged by any of moving Defendants, including Doran Andry, only the express promise by Daher. This does not really add up to an implied contract. An implied contract is one, the existence and terms of which are manifested by conduct. Civ. Code § 1621. A contract is *either* express or implied. Civ. Code § 1619 (emphasis added). Here, by Plaintiffs' allegations, it is express – if it is a contract.

The MJOP as to this cause of action is granted.

***Third Cause of Action for Fraud –
against all Defendants and Does 1-10***

The essential elements of a claim for fraud are “(a) a misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” *In re Estate of Young* (2008) 160 Cal.App.4th 62, 79 (citations omitted).

Again, Plaintiffs allege promises by Daher and Doran Andry by K&A. [SAC, ¶¶ 94-97.] Plaintiff further allege that “Defendants” and K&A’s representations were false when made and made with the intent to induce Plaintiffs’ reliance, which the representations did. [*Id.*, ¶¶ 101-103.]

There is nothing here to connect Doe 9 (much less Doe 12) or Life is Amazing to the alleged misrepresentations.